

The Tamil Nadu Christian Marriages Validation Act, 1934

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State of Tamilnadu- Act

The Tamil Nadu Christian Marriages Validation Act, 1934

TAMILNADU

India

The Tamil Nadu Christian Marriages Validation Act, 1934

Act 8 of 1935

Published on 6 March 1935

Commenced on 6 March 1935

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The Tamil Nadu Christian Marriages Validation Act, 1934

Tamil Nadu Act

8 of 1935

Received the assent of the Governor on the 6th March, 1935, and that of the Governor-General on the 24th March, 1935; the assent of the Governor-General published in the Fort St. George Gazette of the 16th April, 1935.

An Act to validate certain marriages solemnized by Mr A. Asirvatham of the Self-Supporting Seventh Day Adventist Church for the Tamil country in the district of Tirunelveli.

Whereas licences were granted by the [State Government]

[This expression was substituted for the expression 'Government of Madras' by the Tamil Nadu Adaptation of Laws Order, 1970.]

on the 26th day of October 1928 to Mr. A. Asirvatham of the Self-Supporting Seventh Adventist Church for the Tamil

country in the district of Tirunelveli to solemnize marriages and to grant certificates of marriage between Indian Christians under sections 6 and 9, respectively, of the Indian Christian Marriage Act, 1872 (Central Act XV of 1872);

And Whereas on the 7th day of August 1933, the said licences were revoked by the said Government;

And Whereas after the date of the said revocation, the said Mr. Asirvatham continued to solemnize marriages and to grant certificates of marriage up to and including the 15th day of November 1933 as if the said licences had not been revoked;

And Whereas it is doubtful whether the marriages so solemnized and the certificates so granted and the other acts done by the said Mr. Asirvatham in virtue of the said revoked licences on and from the 7th day of August 1933 up to and including the 15th day of November 1933 are valid in-law;

And Whereas there is no reason to doubt that the parties to the said marriages believed in good faith that the said Mr. Asirvatham was legally entitled to act on his said revoked licences between the said dates;

And Whereas it is expedient that all such marriages and all certificates of marriage granted and all other acts relating to such marriages or certificates done by the said Mr. Asirvatham should be validated;

And Whereas the previous sanction of the Governor-General has been obtained to the passing of this Act; It is hereby enacted as follows:-

1.

Short title.

- This Act may be called the [Tamil Nadu]

[These words were substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Christian Marriages Validation Act, 1934.

2.

Validation of certain irregular marriages, certificates and acts.

- All marriages solemnized, all certificates granted and all acts done by the said Mr. Asirvatham on and from the 7th day of August 1933, up to and including the 15th day of November 1933, which would be valid if the licences granted to him on the 26th day of October 1928, had not been revoked shall be deemed to be as valid as if he had held licences under sections 6 and 9 of the Indian Christian Marriage Act, 1872 (Central Act XV of 1872), on and from the 7th day of August 1933, and up to and including the 15th day of November 1933, and no such marriage, certificate or act shall be deemed to be invalid by reason only of the fact that the said licences were revoked.

3.

Validation of records of the said irregular marriages.

- Certificates of marriages validated by section 2 and register-books and certified copies of true and duly authenticated extracts therefrom deposited in compliance with the provisions of the Indian Christian Marriage Act, 1872 (Central Act XV of 1872), shall, in so far as the register-books and extracts relate to such marriages be received as evidence of such marriages as if such marriages had been duly solemnized under the said Act.

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